

3.

CASE #	CASE NAME	HEARING NAME
CVRI2502034	BUSTAMANTE vs PHOENIX ASSURANCE LLC	MOTION TO BE RELIEVED AS COUNSEL FOR PHOENIX ASSURANCE, LLC

Tentative Ruling:

After reviewing the declaration of counsel, Hardy Murphy (CRC 3.1362(d)), the court finds that counsel has shown sufficient reasons why the motion to be relieved as counsel should be granted (Manfredi & Levine vs. Superior Court (Barles) (1998) 66 Cal. App. 4th 1128, 1134).

Notice to client was made (Section 3(a) and (b) MC-052; CRC 3.1362(d)). Accordingly, the Motion to be Relieved as Counsel of Record is Granted.

Counsel is relieved as counsel of record for client effective upon the filing of the proof of service of the signed order upon the client and all parties that have appeared in the action. Order submitted to the court has been signed and filed by the court clerk.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2502492	WHITSON vs MADRID- ANZACK	MOTION FOR RELIEF FROM DISMISSAL

Tentative Ruling:

A motion to set aside a dismissal is generally governed by California Code of Civil Procedure §473(b). A motion to set aside a dismissal under CCP §473(b) must be based on either: declarations or other evidence showing “mistake, inadvertence, surprise, or excusable neglect” (in which event, relief is discretionary), or an attorney affidavit of fault (in which event, relief is mandatory).

Under CCP §473(b), the court is required to vacate any default or dismissal “whenever an application for relief is made no more than six months after entry of judgment (or dismissal), is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect.”

CCP §473(b) grants the trial court discretion to vacate a dismissal on the basis of “mistake, inadvertence, surprise, or excusable neglect.” The moving party bears the burden of demonstrating by a preponderance of the evidence that at least one of these conditions is met. *Hopkins & Carley v. Gens* (2011) 200 CA4th 1401, 1410, 135 CR3d 1, 8–9; *Luz v. Lopes* (1960) 55 C2d 54, 62, 10 CR 161, 165–166.

Mistake

Mistake may be one of fact or law. Mistake of fact occurs when a person understands the facts to be other than they are; a mistake of law occurs when a person

knows the facts as they really are, but has a mistaken belief as to the legal consequences of those facts. *People v. Kelly*, 35 Cal.App.2d 571, 574, 96 P.2d 372.

Under CCP §473(b), relief from default may be granted if the moving party demonstrates a material mistake of fact or law, regardless of whether the mistake was made by a party or by his or her attorney. However, because a lawyer has a duty to look up the law if he or she does not know it, an attorney's mistake of law will be grounds for relief only if it was reasonable. *Anderson v. Sherman* (1981) 125 CA3d 228, 178 CR 38; *McCormick v. Board of Supervisors*, 198 CA3d 352, 360, 243 CR 627, 621. The controlling factors in determining whether an attorney's mistake was reasonable are: (1) the reasonableness of the misconception; and (2) the justifiability of the failure to determine the correct law. *Anderson v. Sherman* (1981) 125 CA3d 228, 178 CR 38.

Inadvertence

Under CCP §473(b), relief from dismissal may be granted if the moving party demonstrates "inadvertence." Inadvertence is defined as lack of heedfulness or attentiveness, inattention, fault from negligence. *Greene v. Montana Brewing Co.*, 32 Mont. 102, 79 P. 693, 694 (internal citations omitted). Inadvertence in the abstract is no plea on which to vacate a default or dismissal. *Shearman v. Jorgensen* (1895) 106 Cal. 483, 485, 39 P. 863.

Surprise

Under CCP §473(b), relief from dismissal may also be granted if the moving party demonstrates "surprise." Surprise refers to "some condition or situation in which a party...is unexpectedly placed to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded against." *Credit Managers Ass'n of So. Calif. v. National Independent Business Alliance* (1984) 162 CA3d 1166, 1173, 209 CR 119, 123; *Hearn v. Howard* (2009) 177 CA4th 1193, 1206, 99 CR3d 642, 654.

Excusable Neglect

Discretionary relief from default may be granted where the moving party can show "excusable neglect," i.e., where the moving party can demonstrate that the default (or dismissal) could not have been avoided through the exercise of ordinary care. See *Shapiro v. Clark* (2008) 164 CA4th 1128, 1141–1142, 80 CR3d 398; *Jackson v. Bank of America* (1983) 141 CA3d 55, 58, 190 CR 78, 80. The issue boils down to whether the moving party has shown a reasonable excuse for the default. See *Shapiro v. Clark* (2008) 164 CA4th 1128, 1141–1142, 80 CR3d 398, 410 (rejecting "categorical statements about what can be found to constitute excusable neglect").

Based on the reading of the declaration of counsel, James Long, the Court finds that Counsel acted with excusable neglect and grants the motion to set aside the dismissal of 4/6/2026.

The matter is set for a **Case Management Conference** on **10/26/2026** at 8:30 a.m. in Dept. 6. The Court also sets the matter for an **OSC** as to why sanctions of up to \$1,500 or a dismissal should not be imposed for Plaintiff's failure to timely file proof of service on all defendants (CRC 3.110.(b)&(f)) on the same date, **10/26/2026** at 8:30 a.m.